

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #02	CCRB Case #: 202106873	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Thursday, 11/11/2021 2:30 PM, Friday, 11/12/2021 4:10 AM	Location of Incident: § 87(2)(b) the 103rd Precinct stationhouse, and en route to § 87(2)(b)	18 Mo. SOL 5/11/2023	Precinct: 103		
Date/Time CV Reported Fri, 11/12/2021 7:11 PM	CV Reported At: Other City agency	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 11/12/2021 7:11 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Franklin Taveras	10653	966881	103 PCT
2. LT Charisse Jenkins	00000	940201	103 PCT
3. PO Nicholas Pryor	09891	961127	103 PCT
4. PO William Schoenewerk	31911	968789	103 PCT
5. PO Nicholas Cottone	01864	963470	103 PCT
6. PO Christina Anderson	03439	955717	103 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Corey Gresh	10457	949063	103 PCT
2. SGT Jim Paul	05381	944143	103 PCT
3. DTS Derek Labua	02993	943456	ESS 09
4. PO Kevin Kelland	22912	965235	103 PCT
5. PO Matthew Fallon	08243	961750	103 PCT
6. PO Daniel Ohman	10320	961032	103 PCT
7. PO Christopher Neun	16699	968667	103 PCT
8. PO Crystal Henderson	21980	969780	103 PCT
9. SGT John Vampas	05569	956313	103 PCT
10. PO Jovan Hall	13693	955969	103 PCT
11. PO Ryan Watson	25834	947871	103 PCT
12. PO Christopher Dachille	02871	961718	103 PCT
13. PO James Barrett	09724	955744	103 PCT
14. PO Michael Dunn	14637	955894	PBQS SU PST
15. SGT Suzanne Lutz	01270	943677	103 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Franklin Taveras	Force: At § 87(2)(b) in Queens, Police Officer Franklin Taveras used physical force against § 87(2)(b)	A . Within NYPD Guidelines
B . PO Christina Anderson	Abuse: At the 103rd Precinct stationhouse, Police Officer Christina Anderson sexually assaulted § 87(2)(b)	B . Unfounded
C . PO William Schoenewerk	Force: At the 103rd Precinct stationhouse, Police Officer William Schoenewerk tightly handcuffed § 87(2)(b)	C . Unable to Determine

Officer(s)	Allegation	Investigator Recommendation
D . PO Nicholas Pryor	Force: At the 103rd Precinct stationhouse, Police Officer Nicholas Pryor used physical force against § 87(2)(b)	D . Within NYPD Guidelines
E . LT Charisse Jenkins	Force: At the 103rd Precinct stationhouse, Lieutenant Charisse Jenkins used physical force against § 87(2)(b)	E . Within NYPD Guidelines
F . PO Nicholas Cottone	Force: At the 103rd Precinct stationhouse, Police Officer Nicholas Cottone used physical force against § 87(2)(b)	F . Miscellaneous - Subject Retired
G . PO William Schoenewerk	Force: At the 103rd Precinct stationhouse, Police Officer William Schoenewerk used physical force against § 87(2)(b)	G . Unable to Determine
H . PO William Schoenewerk	Discourtesy: En route to § 87(2)(b) Police Officer William Schoenewerk spoke discourteously to § 87(2)(b)	H . Unable to Determine
I . PO William Schoenewerk	Off. Language: En route to § 87(2)(b) Police Officer William Schoenewerk made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	I . Unable to Determine

Case Summary

On November 12, 2021, § 87(2)(b) filed this complaint via 311 (Board Review 01). § 87(2)(b) filed a duplicate complaint with the Internal Affairs Bureau via telephone on November 12, 2021 (Board Review 02) and with the CCRB via the call processing system on November 14, 2021 (Board Review 03). This case was originally assigned to Investigator Lydia Woolley. It was reassigned to Supervising Investigator Ethan Waterman on November 29, 2022, and to Supervising Investigator Jean-Paul Lozada on December 15, 2022.

On November 11, 2021, at approximately 2:30 p.m., § 87(2)(b) was arrested at her residence at § 87(2)(b) in Queens § 87(2)(a) 160.50, § 87(2)(b) (Board Review 04). Police Officer Franklin Taveras of the 103rd Precinct handcuffed § 87(2)(b) and allegedly pulled her “harshly” (**Allegation A – Force: Physical Force, within NYPD guidelines**). At the 103rd Precinct stationhouse, Police Officer Christina Anderson of the 103rd Precinct allegedly touched § 87(2)(b)’s bare genitals in a sexual manner while frisking her (**Allegation B – Abuse of Authority: Sexual Assault, unfounded**). § 87(2)(b) asked to be taken to a hospital for stomach cramps and leg pain. As Police Officer William Schoenewerk of the 103rd Precinct applied leg shackles to § 87(2)(b) she complained that the shackles were too tight and he allegedly tightened them further (**Allegation C – Force: Handcuffs Too Tight, unable to determine**) and, as he handcuffed her, he allegedly pinched her wrist with the sharp edge of the handcuffs (**within Allegation C**). Police Officer Nicholas Pryor, Lieutenant Charisse Jenkins, and Police Officer Nicholas Cottone of the 103rd Precinct pulled § 87(2)(b) from the juvenile room to an ambulance parked outside (**Allegations D and E – Force: Physical Force, within NYPD guidelines; Allegation F – Force: Physical Force, subject retired**). Police Officer Schoenewerk allegedly pushed § 87(2)(b) into the ambulance (**Allegation G – Force: Physical Force, unable to determine**). En route to § 87(2)(b) Police Officer Schoenewerk allegedly told § 87(2)(b) to “shut the fuck up” (**Allegation H – Discourtesy: Word, unable to determine**) and allegedly called her a “bitch” (**within Allegation H; Allegation I – Offensive Language: Gender, unable to determine**).

Body-worn camera (BWC) footage from Police Officers Taveras, Corey Gresh, and Kevin Kelland, Detective Derek Labua, and Sergeant Jim Paul of the 103rd Precinct is saved in IA#s 101-109 (Board Review 05-12) and summarized in IA #s 181 (Board Review 13).

Surveillance footage from the 103rd Precinct stationhouse is saved in IA#s 41 and 59 (Board Review 14, 15) and summarized in IA#s 76 and 169 (Board Review 16, 17).

Findings and Recommendations

Allegation (A) Force: At § 87(2)(b) in Queens, Police Officer Franklin Taveras used physical force against § 87(2)(b)

§ 87(2)(b) was interviewed on November 22, 2021 (Board Review 18), and provided a follow-up telephone statement on February 17, 2022 (Board Review 19). Police Officer Schoenewerk was interviewed on January 25, 2023 (Board Review 20). Police Officer Pryor was interviewed on January 27, 2023 (Board Review 21). Police Officer Nadiyah Alexander of the 103rd Precinct was interviewed on February 7, 2023 (Board Review 22).

§ 87(2)(b) stated that while she was hiding in her residence, Police Officer Taveras entered the home, handcuffed her, and then pulled her “harshly.” When asked which parts of her body Police Officer Taveras made contact with when he pulled her, she answered, “Around.” § 87(2)(b) was

not sure whether she was injured from being pulled.

In Police Officer Taveras' BWC footage (Board Review 05), at runtime 04:10, officers begin handcuffing § 87(2)(b) in her living room. Once she is handcuffed, Police Officer Taveras holds § 87(2)(b) by her left elbow and walks her down the stairs and to a police vehicle. This is also visible in Sergeant Paul's BWC footage, beginning at runtime 04:55 (Board Review 06). Police Officer Taveras does not appear to pull § 87(2)(b) in a forceful manner.

Patrol Guide Procedures 221-01 and 221-02 (Board Review 23) state that officers may use force when it is reasonable to ensure officers' or civilians' safety, or when it is reasonable to place a person in custody or to prevent escape from custody. Officers' use of force must be reasonable under the circumstances, and de-escalation techniques, which may reduce or eliminate the need for force by gaining the subject's voluntary compliance, must be prioritized. Officers shall "apply no more than the reasonable force necessary to gain control," and excessive force is not tolerated. Factors to be considered in determining whether the use of force is reasonable include the following: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, members of service or bystanders; whether the subject is actively resisting custody; whether the subject is attempting evade arrest by flight; the number of subjects in comparison to the number of members of service; size, age and condition of the subject in comparison to the member of service; subject's violent history if known; presence of hostile crowd or agitators; and whether the subject is apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase likelihood of violence.

§ 87(2)(b) alleged that Police Officer Taveras pulled her "harshly" after handcuffing her. The BWC footage shows that Police Officer Taveras held § 87(2)(b) by her elbow as he walked her out of her home, down the stairs, and to a police vehicle. § 87(2)(g)

§ 87(2)(b) The investigation has therefore determined that **Allegation A** was **within NYPD guidelines**.

Allegation (B) Abuse of Authority: At the 103rd Precinct stationhouse, Police Officer Christina Anderson sexually assaulted § 87(2)(b)

§ 87(2)(b) stated that Police Officer Anderson was "being too touchy" when she searched her at the front desk for approximately two to five minutes. Police Officer Anderson stepped behind § 87(2)(b) put one hand down § 87(2)(b)'s pants, and touched the bare skin of her crotch and genitals. § 87(2)(b) was not wearing undergarments and noted that this "felt like it was assault rather than actually her doing her job." She explained, "She checked one time and I had nothing, but she kept on doing it again and again. It made me feel super uncomfortable because I didn't really have much clothes on, either. She would even put her hand on my private parts, and also on my breasts." Police Officer Anderson touched § 87(2)(b) "in a sexual way" and made "circular motions" while she was "touching it" and "rubbing it." Police Officer Anderson's hands were in § 87(2)(b)'s "private area" for approximately 30 seconds.

In Police Officer Taveras' BWC footage (Board Review 05), at runtime 19:48, § 87(2)(b) is at the front desk when Police Officer Anderson exits a room and dons a pair of rubber gloves. Police Officer Anderson adjusts § 87(2)(b)'s glasses, pushes her hair away from her face, and pats down her chest, under her breasts, her stomach, and along the side of her waistband. Police Officer Anderson runs her hand along the top of § 87(2)(b)'s waistband from the back to the front. At 20:19, Police Officer Anderson tells § 87(2)(b) to stop moving. § 87(2)(b) steps to her left and then

stands still. Police Officer Anderson pats down § 87(2)(b)'s stomach, and her hands are momentarily blocked by the front desk. At 20:30, Police Officer Anderson pulls up § 87(2)(b)'s waistband and tucks in her shirt. § 87(2)(b) leans her torso forward and then stands straight. Police Officer Anderson then pats § 87(2)(b)'s left hip and leg and bends forward at the waist, and her hands are momentarily blocked by the desk again. At 20:53, while Police Officer Anderson is bent at the waist and appears to be reaching down below § 87(2)(b)'s knees, § 87(2)(b) says, "You're touching me in my private area," and Police Officer Anderson responds, "I have to." Police Officer Anderson touches § 87(2)(b)'s hair at the top of her scalp and waves a metal detector around § 87(2)(b)'s waistband. At 21:35, Police Officer Anderson touches the top of § 87(2)(b)'s waistband. § 87(2)(b) says, "Can you stop?" and Police Officer Gresh says, "Knock it off." Police Officer Anderson touches the top of § 87(2)(b)'s waistband from the back to the front, and then walks away at 21:45. Police Officer Anderson does not appear to reach past § 87(2)(b)'s waistband or make contact with § 87(2)(b)'s bare genitals at any point.

Police Officer Anderson's search of § 87(2)(b) at the front desk is also captured in surveillance footage from the 103rd Precinct stationhouse (Board Review 24).

Patrol Guide Procedure 208-05 (Board Review 25) states, "Upon arrival at precinct of arrest or other Department facility, the arresting officer (if he/she is of the same gender as the prisoner) or another designated member of the same gender as the prisoner, shall conduct a thorough search of the prisoner's person and clothing to ensure the safety of all persons within the facility and to remove weapons, contraband, and evidence not discovered by the [field] frisk." A search at a police facility "includes the removal of outer garments (e.g. overcoats, jackets, sweaters, vests, hats, wigs, ties, belts, shoelaces, drawstrings, shoes, socks, handbags, wallets, etc.). All pockets are to be emptied and all clothing not removed will be examined by grabbing, crushing and squeezing the garments and by sliding the hands across the body to detect articles that may be underneath or sewn to the clothing."

§ 87(2)(b) alleged that Police Officer Anderson touched her in a sexual manner by touching her bare genitals with bare hands for approximately 30 seconds. However, the BWC footage and stationhouse footage shows that Police Officer Alexander conducted the search in accordance with Patrol Guide Procedure 208-05, and that she did not reach under § 87(2)(b)'s pants and touch her bare genitals at any point. It is therefore recommended that **Allegation B** be **unfounded**.

Allegation (C) Force: At the 103rd Precinct stationhouse, Police Officer William Schoenewerk tightly handcuffed § 87(2)(b)

Allegation (D) Force: At the 103rd Precinct stationhouse, Police Officer Nicholas Pryor used physical force against § 87(2)(b)

Allegation (E) Force: At the 103rd Precinct stationhouse, Lieutenant Charisse Jenkins used physical force against § 87(2)(b)

Allegation (F) Force: At the 103rd Precinct stationhouse, Police Officer Nicholas Cottone used physical force against § 87(2)(b)

It is undisputed that Police Officer Pryor, Lieutenant Jenkins, and Police Officer Cottone used some degree of force to bring § 87(2)(b) from the juvenile room to an ambulance parked outside the stationhouse.

§ 87(2)(b) stated that after she asked to be taken to a hospital, Police Officer Schoenewerk applied leg shackles to her ankles, causing pain. § 87(2)(b) asked Police Officer Schoenewerk to stop tightening the shackles approximately six times, and then Police Officer Schoenewerk tightened them further. § 87(2)(b) did not offer physical resistance while Police Officer Schoenewerk applied

the shackles. As he handcuffed § 87(2)(b) Police Officer Schoenewerk pinched her left wrist with the sharp edge of the handcuffs. § 87(2)(b) told Police Officer Schoenewerk that he was hurting her, and then Police Officer Schoenewerk pinched her wrist even more aggressively. § 87(2)(b) removed Police Officer Schoenewerk's hand from her wrist, and then Police Officer Schoenewerk pinched her with the handcuffs again. § 87(2)(b) did not offer physical resistance while being shackled or handcuffed, and she believed Police Officer Schoenewerk could have easily cuffed her without incident, but instead intentionally tried to hurt her. It took Police Officer Schoenewerk approximately one to two minutes to handcuff § 87(2)(b) Lieutenant Jenkins then grabbed § 87(2)(b)'s forearm and pulled her forward, and § 87(2)(b) cried for help. Outside the juvenile room, § 87(2)(b) fell to the floor and landed on her knees, and Lieutenant Jenkins pulled her up by the hood of her jacket. Lieutenant Jenkins and Police Officers Pryor and Cottone then dragged § 87(2)(b) out of the stationhouse and to an ambulance, and both of § 87(2)(b)'s shoes fell off. § 87(2)(b)'s feet were on the ground, but she could not walk properly due to how the officers pulled her. § 87(2)(b) could not offer resistance because she did not have control over her body. The more she asked the officers to stop, the harder they pulled her.

A Threat, Resistance, and Injury (TRI) Worksheet prepared for this incident (Board Review 26) identified the officers involved as Police Officer Schoenewerk, Police Officer Pryor, and an unidentified third officer. It indicates that Police Officer Schoenewerk and the unidentified officer used wrestling/grappling for defense of self and to overcome § 87(2)(b)'s resistance and aggression. It states that while Police Officer Schoenewerk was handcuffing and shackling § 87(2)(b) she expressed that he was being too rough and that the shackles were unnecessary. § 87(2)(b) began to actively resist being placed in handcuffs. Officers arrived in the juvenile room to assist Police Officer Schoenewerk, and § 87(2)(b) kicked Police Officer Pryor. The following day, § 87(2)(b) alleged to Sergeant Suzanne Lutz of the 103rd Precinct that a female officer pulled her hair and "manhandled" her at the stationhouse. § 87(2)(b) offered passive resistance while being escorted from the juvenile room to the ambulance.

Surveillance footage that captures the front desk of the 103rd Precinct stationhouse (Board Review 27) shows officers bringing § 87(2)(b) out of the stationhouse in handcuffs and leg shackles. § 87(2)(b) is missing a shoe when she enters the frame. Lieutenant Jenkins has an arm linked through § 87(2)(b)'s left arm, while Police Officer Pryor has an arm linked through § 87(2)(b)'s right arm. They attempt to walk § 87(2)(b) forward, but § 87(2)(b) leans her torso forward, appears to drop her weight, and does not appear to voluntarily walk with the officers. At runtime 00:09, Lieutenant Jenkins releases § 87(2)(b)'s left arm, and Police Officer Cottone grabs it. The officers keep § 87(2)(b) upright and pull her forward. § 87(2)(b) is not seen on the floor in any angle of the stationhouse footage.

The investigation received no video footage that captures the events that occurred inside the juvenile room.

Police Officer Schoenewerk stated that he and § 87(2)(b) were alone in the juvenile and § 87(2)(b) was handcuffed to a wall when he first applied the leg shackles. He tried to apply the shackles loosely and comfortably for § 87(2)(b). One of the shackles was locked around § 87(2)(b)'s leg, but unbeknownst to Police Officer Schoenewerk, the other shackle was "seated" but not locked around § 87(2)(b)'s other leg. Police Officer Schoenewerk removed the handcuff from the wall and asked for § 87(2)(b)'s other hand to rear-handcuff her. § 87(2)(b) asked why this was necessary and said she believed the shackles were sufficient. As Police Officer Schoenewerk attempted to apply the handcuffs, § 87(2)(b) exclaimed that he was hurting her, but he did not know how he caused her pain. § 87(2)(b) began swinging her handcuffed arm, and Police Officer Schoenewerk leaned away from § 87(2)(b) while holding her arm to avoid being struck by the handcuffs. Police

Officer Pryor and Lieutenant Jenkins came to the juvenile room and got § 87(2)(b) under control by grabbing her from both sides and “guiding her into the wall.” The officers held § 87(2)(b)’s forearms, and Police Officer Schoenewerk completed the handcuffing process. The leg shackle that was seated but not locked came undone, and § 87(2)(b) kicked Police Officer Pryor. The officers again “guided” § 87(2)(b) toward the wall, and Police Officer Schoenewerk reapplied the leg shackle. Police Officer Schoenewerk did not recall whether § 87(2)(b) ever asked him to stop tightening her leg shackles or handcuffs; he did not believe he tightened them further after she made such a request, and he was unaware of any other officer doing so. Police Officer Schoenewerk did not recall whether he pinched § 87(2)(b)’s hand with the sharp end of the handcuff because “it was so quick and it happened so fast, we just wanted to get her under control to make sure she can’t hurt anyone else.” He did not believe § 87(2)(b) was ever on the floor in the stationhouse. § 87(2)(b) continued to “try to flail and scream at the top of her lungs” as Police Officer Pryor and Lieutenant Jenkins brought her outside to an ambulance. Police Officer Schoenewerk believed Police Officer Pryor and Lieutenant Jenkins overcame § 87(2)(b)’s resistance by carrying her out of the stationhouse. Police Officer Schoenewerk was unaware of § 87(2)(b) being dragged to the ambulance, and he noted that he lost sight of her once she, Lieutenant Jenkins, and Police Officer Pryor turned a corner in a hallway.

Police Officer Pryor stated that he saw Police Officer Schoenewerk having difficulty handcuffing § 87(2)(b) in the juvenile room, and he believed she had slipped out of her leg shackles. Police Officer Pryor went to the juvenile room to assist Police Officer Schoenewerk. Police Officer Pryor did not recall whether § 87(2)(b)’s legs were shackled when he arrived at the juvenile room, but he noted that the leg shackles were ultimately applied before § 87(2)(b) was taken to the ambulance. Police Officer Schoenewerk handcuffed § 87(2)(b) but Police Officer Pryor did not recall how long this took him, or what § 87(2)(b) was doing while Police Officer Schoenewerk handcuffed her. Police Officer Pryor did not recall whether they had difficulty handcuffing § 87(2)(b) once he began assisting Police Officer Schoenewerk, or if any additional officers assisted with handcuffing § 87(2)(b). Police Officer Pryor believed § 87(2)(b) refused to walk with him as he attempted to bring her to the ambulance. Police Officer Pryor did not recall whether officers gave § 87(2)(b) any verbal commands. Police Officer Pryor overcame § 87(2)(b)’s resistance by hooking his arm through hers and walking her forward. Police Officer Pryor did not recall whether he made any other physical contact with § 87(2)(b). Police Officer Pryor did not believe § 87(2)(b) was lifted off the ground at any point or carried in any fashion.

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **unable to determine**.

Patrol Guide Procedures 221-01 and 221-02 (Board Review 23) state that officers may use force when it is reasonable to ensure officers’ or civilians’ safety, or when it is reasonable to place a person in custody or to prevent escape from custody. Officers’ use of force must be reasonable under the circumstances, and de-escalation techniques, which may reduce or eliminate the need for force by gaining the subject’s voluntary compliance, must be prioritized. Officers shall “apply no more than the reasonable force necessary to gain control,” and excessive force is not tolerated. Factors to be considered in determining whether the use of force is reasonable include the following: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, members of service or bystanders; whether the subject is actively resisting custody; whether the subject is attempting evade arrest by flight; the number of subjects in comparison to the number of members of service; size, age and condition of the subject in comparison to the member of service; subject’s violent

history if known; presence of hostile crowd or agitators; and whether the subject is apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase likelihood of violence.

The surveillance footage from the lobby of the 103rd Precinct stationhouse shows that § 87(2)(b) refused to voluntarily walk forward with the officers as they attempted to bring her to an ambulance. § 87(2)(g)

the investigation has therefore determined that **Allegations D and E** were **within NYPD guidelines**.

Police Officer Cottone retired from the NYPD on July 2, 2022 (Board Review 28). It is therefore recommended that **Allegation F** be closed as **miscellaneous – subject retired**.

Allegation (G) Force: At the 103rd Precinct stationhouse, Police Officer William Schoenewerk used physical force against § 87(2)(b)

Allegation (H) Discourtesy: En route to § 87(2)(b) Police Officer William Schoenewerk spoke discourteously to § 87(2)(b)

Allegation (I) Offensive Language: En route to § 87(2)(b) Police Officer William Schoenewerk made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

§ 87(2)(b) stated that when she reached the ambulance, Police Officer Schoenewerk put his hand on her lower back and pushed her into the ambulance. En route to the hospital, § 87(2)(b) asked Police Officer Schoenewerk why he pinched her with the handcuffs and pushed her. § 87(2)(b) was unable to recall the entirety of this conversation, which she described as an argument. At one point, Police Officer Schoenewerk yelled at § 87(2)(b) and told her to “shut the fuck up.” § 87(2)(b) responded, “You should shut the fuck up.” § 87(2)(b) believed Police Officer Schoenewerk responded by calling her a “bitch.”

In surveillance footage from the exterior of the stationhouse (Board Review 29), officers are seen bringing § 87(2)(b) to an ambulance. § 87(2)(b) and the officers walk around the side of the ambulance, outside the camera’s view. § 87(2)(b) cannot be seen being placed inside the ambulance.

Police Officer Schoenewerk stated that after Lieutenant Jenkins and Police Officers Pryor and Cottone removed § 87(2)(b) from the stationhouse, he went to gather his gun and other items he needed to bring § 87(2)(b) to the hospital. When Police Officer Schoenewerk arrived at the ambulance, § 87(2)(b) was already strapped into a stretcher. § 87(2)(b) was “agitated,” “confrontational,” and “still acting irate and erratic.” § 87(2)(b) spat at the officers, screamed “at the top of her lungs,” and tried to move around in the stretcher although she was strapped down. Police Officer Schoenewerk did not recall whether he told § 87(2)(b) to “shut the fuck up” or called her a “bitch,” and he did not recall using profanities at any point during their interaction.

Police Officer Pryor did not recall whether any officer pushed § 87(2)(b) into the ambulance. He did not recall whether any officer told § 87(2)(b) to “shut the fuck up” or called her a “bitch.”

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegations H and I** be closed as **unable to determine**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one other CCRB complaint and has been named as a victim in one other allegation (Board Review 30):
 - § 87(2)(b)
- Police Officer Franklin Taveras has been a member of service for four years and has been a subject in one other complaint and one other allegation which was not substantiated. § 87(2)(g)
- Police Officer Christina Anderson has been a member of service for nine years and has been a subject in one other case and two other allegations, of which one was substantiated.
 - 201802606 involved a substantiated Gun Pointed allegation. The Board recommended Formalized Training and the NYPD imposed Instructions.
 - § 87(2)(g)
- Police Office William Schoenewerk has been a member of service for three years and has been a subject in one other case and four other allegations, none of which were substantiated. § 87(2)(g)
- Police Officer Nicholas Pryor has been a member of service for seven years and has been a subject in one other case and one other allegation which was not substantiated. § 87(2)(g)
- Lieutenant Charisse Jenkins has been a member of service for 17 years and has been a subject in six other cases and ten other allegations, none of which were substantiated. § 87(2)(g)
- Police Officer Nicholas Cottone was a member of service for an unknown amount of time and has been a subject in two other CCRB cases and three other allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of February 18, 2022, the New York City Office of the Comptroller had no record of a Notice of Claim being filed in regards to this incident (Board Review 31).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 02

Investigator: JP Lozada Acting IM Jean-Paul Lozada 2/15/2023
Signature Print Title & Name Date

Squad Leader: Alexander Opoku-Agyemang IM Opoku-Agyemang 2/15/2023
Signature Print Title & Name Date